

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters remain SET FOR HEARING and you should appear:</u>				
1	19PR-0033	Estate of: Marlene Gayda	Petition Filed 12/19/2023 - Final Distribution and Accounting [DUE 9/1/26]; cont'd 07/02/24, 1/14/25, 12/3/25, & 1/27/26	HEARING LIST. Zoom or personal appearance is required. This matter is related to No. 2 on the calendar. The following is noted with regard to the Petition for Final Distribution, which cannot proceed until the role of personal representative is filled due to the vacancy under Probate Code sections 8520 and 8522. The following issues remain for the Petition for Final Distribution and have not been corrected in five hearings: 1. Notice was not given in compliance with Probate Code section 11601 and California Rules of Court, rule 7.51. Either notice using Judicial Council form DE-120, or waivers of notice are acceptable. 2. Accounting Issues: a. Account Period. The accounting period is not accurate. A Probate Decedent's Estate account covers the period from the date of death to the date of distribution. (Fiduciary Accounting Handbook (Cont.Ed.Bar 2022). When the Accounts of Personal Representatives of Decedent's Estate Begin § 4.5.) The account provided starts February 7, 2019, a month before Letters issued, not the date of death. An Amended Account is needed. b. Starting Values: A Final Inventory and Appraisal was filed on April 2, 2019 for \$212,500. It is unclear how the estate is now valued at \$499,686.76, with the property being

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				<i>valued at over \$400,000. It appears the Petitioner has not used the 2007 value of the assets (date of death). An Amended Account is needed.</i> <i>c. Receipts. The receipt schedule is unclear due to the inclusion of new values and assets previously and not previously accounted for in the file (items 1-2).</i> <i>d. Disbursements. Details are needed on the \$59,442.26 in civil attorney fees and expenses. These are extraordinary fees and should have been presented for approval. Details are needed as to the \$1,500 in costs paid to Attorney Balsamo.</i> <i>e. Assets on hand. The values on the assets on hand appear to be unsupported by the materials. No personal property was reported in the Inventory and Appraisal filed or a Supplemental Inventory and Appraisal. Where did these assets come from? The value of the real property does not match the Inventory and appraisal value. Carry value must be used in probate accountings.</i> <i>f. Liability Schedule. The balance of the outstanding loan is needed, even if other payment arrangements will be contemplated.</i> <i>3. Fees:</i> <i>a. Statutory Fee Amount Incorrect. It appears that Petitioner has calculated statutory fees on</i>

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				<i>an estate value of \$499,868.76. It is unclear how this amount was derived as noted above. A loan to the estate is not an appropriate receipt to include in statutory fees. The loan must be repaid and is not money collected into the estate that adds value to the estate. It is a liability of the estate. It appears only rental income of \$50,450.00 exists and possibly the civil judgment. Clarification is needed.</i> <i>b. Fee Split on Statutory Fees. The prayer of the Petition indicates that statutory attorney's fees shall be split between present counsel and Mr. Balsamo to "be determined either by agreement or by the Court". The Court requires a written agreement between counsel for approval. If an agreement cannot be reached, a proposed split is needed, with notice to each party and an opportunity to respond. Please review California Rules of Court, rule 7.704.</i> <i>c. Extraordinary Fees. As noted above, it appears there may be a request for extraordinary fees in the civil litigation completed for the estate. A request and supporting invoices are needed for review.</i> <i>4. Schedule H proposes a "plan" to loan the estate money to pay off attorney's fees. It is unclear how the loan would work, as the estate is in a position to close and it would then have a liability unpaid, in addition to the</i>

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				<i>current liability owed to Ms. Owens. Is the plan perhaps not a loan, but an agreement of the parties to pay 1/3 of the fees and outstanding liabilities personally in order to close the estate? Clarification is needed and if a loan is being used, a copy of the proposed loan documents will be needed, along with an explanation how the estate may close with that outstanding loan and no way to repay the same.</i> 5. <i>An omnibus clause is needed. The language in item 2 of the prayer is not clear so to later discovered property.</i> 6. <i>The request for discharge upon distribution is not in line with Probate Code section 12250. Discharge will be determined upon filing the appropriate receipts and an Ex Parte Petition for Final Discharge and Order (DE-295).</i> 7. <i>A proposed Order is needed.</i> 8. <i>It is recommended Sanctions be issued for the failure to keep this matter moving.</i>
2	19PR-0033	Estate of: Marlene Gayda	Petition Filed 11/18/2025 [DUE 8/4/26] - Appointment of Successor Personal Representative; cont'd 1/27/26	HEARING LIST: Zoom or personal appearance is required. The following issues are noted: 1. <i>The caption and body of the Petition do not match. Item 2c requests full authority to act under the Independent Administration of Estates Act. If this is Petitioner's wishes, the caption must also so state.</i> 2. <i>Item 2d(1) is checked. A bond of \$462,000 is required as the proposed personal representative lives out of state. (Cal. Rules of Court, rule 7.201(b); Super. Ct. San Luis Obispo County, rule 11.306.) It is unclear if the parties are claiming an exceptional</i>